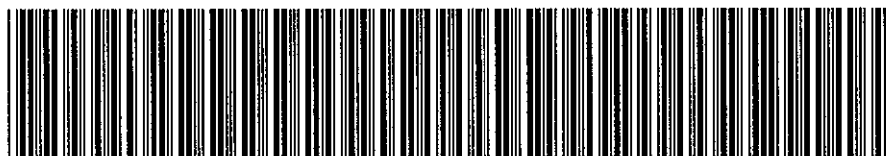


EWR D&I ANNOTATION



FAN-000001L092001DP82-7866

Artemis # : 000001L092001DP82

Record Created Date :

Printed Date : 04/23/2010

Description : DI09-096, SEQ ID 82. A 2006 CHEVROLET COBALT WAS IN A FRONT-END COLLISION IN MD. DRIVER STATES HE WAS GOING 40-45 MPH THROUGH A GREEN LIGHT WHEN ANOTHER VEHICLE RAN A RED LIGHT AND HIT THE FRONT OF THEIR VEHICLE. AIR BAGS DID NOT DEPLOY. DRIVER AND PASSENGER RECIEVED MINOR INJURIES. GM OPTS TO NOT RESPOND. NO POLICE REPORT. *RM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

December 16, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new

requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

12660

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

11 February 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI09-096
3 18605620-675350
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

3 18605620-675350 **_01_001** - is the first document responsive to Inquiry no. 1.

3 18605620-675350 **_02_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(88 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
3	5GAER23D69J [REDACTED]	NISM
7	UNKNOWN	NISM
15	5GADS13S142 [REDACTED]	NISM
39	1G6DU57V090 [REDACTED]	LIT
63	UNKNOWN	NISM
78	1G1AL52F957 [REDACTED]	NISM
81	1G1AK52F257 [REDACTED]	NISM
82	1G1AK55F167 [REDACTED]	NISM
85	1G1AK15F467 [REDACTED]	NISM
87	1G1AK55F267 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
88	1G1AM15B367	NISM
89	1G1AL15FX67	NISM
90	1G1AK15F367	NISM
91	1G1AL58F977	NISM
92	1G1AK15F077	NISM
93	1G1AK55F577	NISM
94	1G1AK15F477	NISM
95	1G1AK55F577	LIT
96	1G1AK15F077	NISM
98	1G1AK58FX77	NISM
100	1G1AK55FX77	NISM
101	1G1AK15F477	NISM
103	1G1AK18F887	NISM
105	1G1AL58F287	NISM
106	1G1AK18F187	NISM
107	1G1AL58F987	NISM
108	1G1AK58F987	NISM
109	1G1AL58F987	NISM
110	1G1AT58H097	NISM
131	3GNDA23P76S	NISM
137	3GNDA13D48S	NISM
145	2G1WF52E049	NISM
146	2G1WF52E249	NISM
148	2G1WH52K049	NISM
149	2G1WH52K049	NISM
158	2G1WT58N279	NISM
167	2G1WT57K791	NISM
168	2G1WC57M591	NISM
178	1G1ZG57B39F	NISM
209	1GCEK24009Z	NISM
216	1GCHK29K57E	NISM
219	1GBJC34K78E	NISM
231	1GNFC16047J	NISM
243	1GNFK33059R	NISM
253	1GNDS13S642	NISM
254	1GNDT13S052	NISM
255	1GNDT13S052	NISM
256	1GNDS13SX52	NISM
257	1GNDT13S852	NISM
258	1GNDT13S052	NISM
259	1GNDT13S352	NISM
251	1GNDT13S662	NISM
263	1GNDT13S682	NISM
264	1GNDT13S882	NISM
266	1GNDS33S892	NISM
270	1GNES16S866	NISM
271	1GNEV23D29S	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
276	1GNDU03E64D [REDACTED]	NISM
281	1GKEV23D59J [REDACTED]	NISM
282	1GKEV23D99J [REDACTED]	NISM
288	UNKNOWN	NISM
289	1GKDS13S442 [REDACTED]	NISM
290	1GKDT13S442 [REDACTED]	NISM
291	1GKDT13S552 [REDACTED]	NISM
292	1GKDS13S962 [REDACTED]	NISM
293	1GKDS13S462 [REDACTED]	NISM
297	1GKET16S956 [REDACTED]	NISM
299	1GKES12S046 [REDACTED]	NISM
300	1GKES12S956 [REDACTED]	NISM
311	3GTEC13C48G [REDACTED]	NISM
312	3GTEK13378G [REDACTED]	NISM
327	5GTDN136568 [REDACTED]	NISM
338	1G2ZF55B264 [REDACTED]	NISM
339	1G2ZF55B064 [REDACTED]	NISM
341	1G2ZG558364 [REDACTED]	NISM
343	1G2ZH18N374 [REDACTED]	NISM
344	1G2ZG58B574 [REDACTED]	NISM
345	1G2ZH57N584 [REDACTED]	NISM
346	1G2ZG57B384 [REDACTED]	NISM
348	1G2ZH57N684 [REDACTED]	NISM
349	1G2ZF57B584 [REDACTED]	NISM
351	1G2ZJ57B494 [REDACTED]	NISM
352	1G2ZH36N994 [REDACTED]	NISM
354	6G2EC57Y19L [REDACTED]	NISM
370	2G2WP552881 [REDACTED]	NISM
382	5S3ET13S662 [REDACTED]	NISM
390	5GZER13737J [REDACTED]	NISM
391	5GZEV23748J [REDACTED]	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing

responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read 'G. Kent', with a stylized flourish at the end.

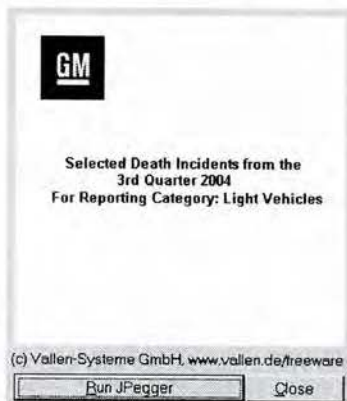
Gay P. Kent,
Director, Product Investigations
and Safety Regulations

Enclosures: 88 Disks
Attachment A

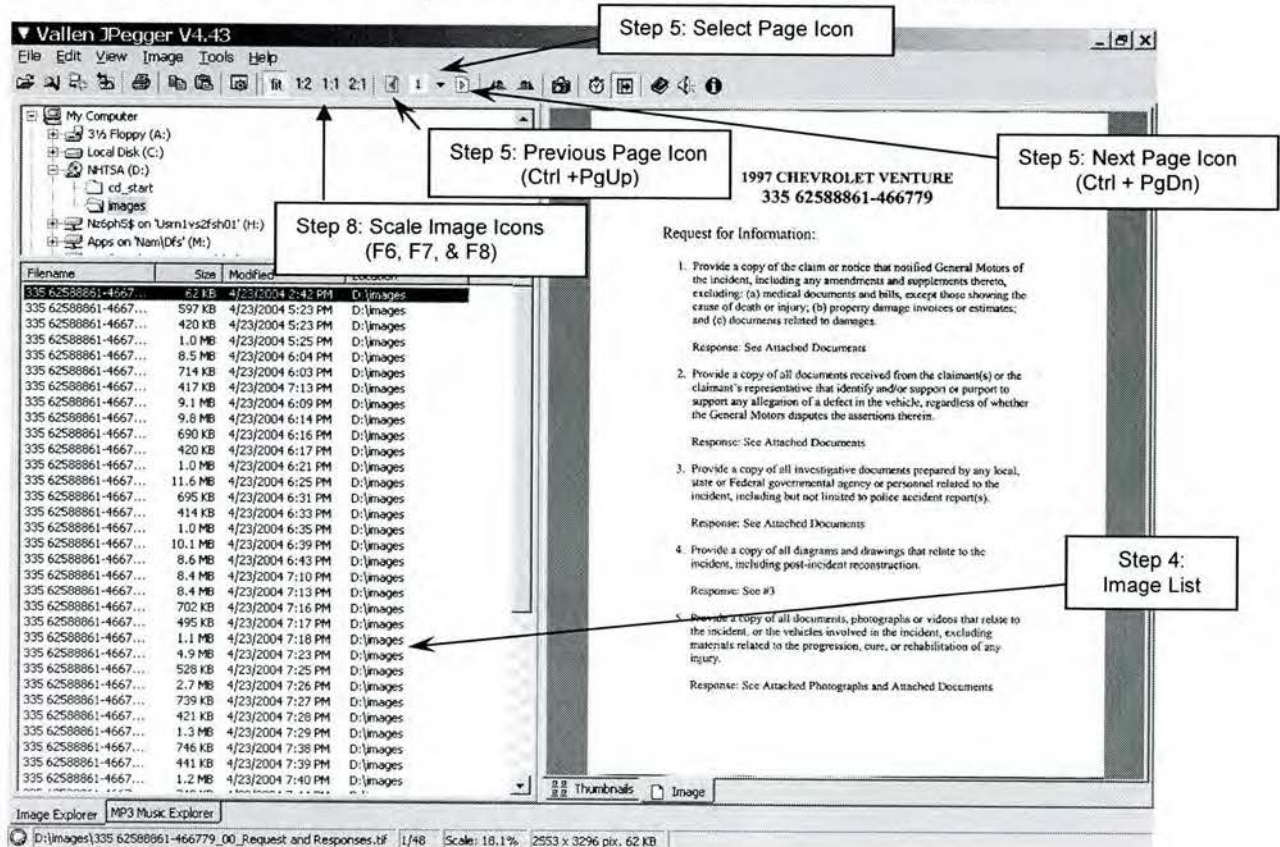
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

ATTORNEY OR PARTY-RELATED ATTORNEY FILING, FILE FOR COUNTER, AND ADDRESS
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 381 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126
 ATTORNEY FOR PLAINTIFF'S

FOR COURT USE ONLY

FILED AND OF COURT JUDGE, COUNTY, AND JUDGE'S COURT, IF ANY
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1811)

CASE NUMBER:
 ASSIGNED JUDGE:

Please complete all five (5) items below.

1. Check one box below for the case type that best describes this case:

☒ Auto Tort (22)
☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Assisted (24)
☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PIP/DWD (23)
☐ Non-PIP/DWD (Other) Tort
☐ Business tort/unfair business practice (37)
☐ Child rights (e.g., discrimination, false arrest) (55)
☐ Defamation (e.g., slander, RAD) (13)
☐ Fraud (18)
☐ Intellectual property (19)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWD tort (26)
☐ Employment
☐ Wrongful termination (36)
☐ Contract
☐ Breach of contract/warranty (46)
☐ Collections (e.g., money owed, open book accounts) (59)
☐ Insurance coverage (14)
☐ Other contract (37)
☐ Real Property
☐ Eminent domain/condemnation (14)
☐ Wrongful eviction (33)
☐ Other real property (e.g., quiet title) (28)
☐ Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
☐ Juvenile Delinquency
☐ Asset forfeiture (26)
☐ Petition for restoration award (11)
☐ Will of decedent (52)
☐ Other probate matter (37)
☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 188a-1812)
☐ Antitrust/Trade regulation (53)
☐ Construction defect (10)
☐ Claims insurance monies tort (23)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring nonpartisan judicial management:
 a. ☒ Large number of separately represented parties b. ☐ Large number of c. ☐ Coordination on issues that will be time-consuming to resolve d. ☐ Large number of e. ☐ Coordination on issues that will be time-consuming to resolve f. ☐ Substantial post

3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ Other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003

ERIC D. PARIS, ESQ., S/B# 147836
 (Print on next page)

NOTICE
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (ex. under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1811).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 at seq. of the California Rules of Court, you must other parties to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From Integrated for Mandatory Use
 Superior Court of California
 982.2(b)(1) Rev. January 1, 2006

CIVIL CASE COVER SHEET

Next Image
 Previous Image
 Next page
 Previous page
 Full screen image
 Slide show
 Fit Scale to fit
 1:2 Scale 50%
 1:1 Scale 100%
 2:1 Scale 200%
 Rotate left
 Rotate right
 Rotate by 180°
 Copy to clipboard
 Copy file to...
 Move file to...
 Rename file...
 Delete file...
 Image Properties
 Preferences...

Step 7: Next File (Image)
 Step 7: Next page
 Step 8: Scale Image
 Step 7: Image Properties

DI09-096
82 5428671 – 675012
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: None.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

Service Request Detail

SR No. (b) (6)	Ref No.	Goodwill	No Goodwill Offered	BRC Type	PAR
Account	Site	GW SubType		Bus. Unit	BRC
Last Name	First Name	Approval	Not Initiated	Area	PAR
Daytime #	Evening #	UCC	Restraints - (SIR) - Driver Front	Sub-Area	Initiate PAR- Collision
Address	City Frederick	Involved Dir	Buchanan Automotive, Inc.	Safety	Yes
State MD ZipCd	Con Acct	Source	Phone	Updated	9/28/2009 04:45:47 PM
Serial #/VIN 1G1AK55F167	Model Year 2008	Priority	Medium License # CHEVROL	Owner	MERCADTO
Make Chevrolet	Warr. Start 07/03/2009	Status	Closed	Opened	5/29/2009 03:59:30 PM
Model Cobalt	Mileage 55000	Sub-Status	Dissatisfied	Closed	9/28/2009 04:45:45 PM
Abstract	Restraints - (SIR) - Driver Front (Non Deployment)				
Customer Description	This is a BRC PAR File. Please do not Assume. DO NOT ADVISE. Forward all inquiries to Torie Mercado @ ext 41183				

Pre-PAR

PAR/Notifier	Incident Date/Time	Injuries / # Other Veh	# People In Veh	Road Surface	Road Cond	Fire Report	Police Report
Owner	5/21/2009 05:27:08 PM	Y	1	2 Asphalt	Dry	n/a	2009032868
Driver Last Name	Driver First Name	Height	Weight	Disabilities			
		5'8		No			
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency				
n/a	n/a	(301) 652-1144	Erie				
Incident Loc	South Market St Intersection of Webster dr	Incident Desc	I was coming down the market on the street the lady cross the street on a red light and then I hit her and then I couldn't go stop, I was with my son then and the air bags didn't deploy; my son is not that injured he just had a cut on his neck.				
Component	Airbag	Damage Desc	the bumper is not totally is not off with it; radiator is leaking; the passenger side fender is bent; the bumper is lying on the ground				
Vehicle Loc	Unknown	Add'l Info	I just want info as to why the air bags didn't deploy				
Emergency Names	Unknown	Main Loc	GP Lube				

PAR Detail

Collision	Y	Non Collision	Property Damage	N	Thermal Evt	N	Spec Equip	None
Vehicle Speed	40	Weather Condition	dry and clear	Prop Owner	n/a	Property Type	n/a	
Last Service Date		Loc Last Service		Property Location	n/a/n/a	Prop Est Repair Cost		
Veh Est Repair Cost		Spec Equip Installer		Prop Damage Description		Inspection Date/Time		
Primary Veh Use	Personal	Inspection Type		Inspected By	Inspection Not Performed			
Veh Damage Description	frontal damages	Explain Other	File going to ESIS					

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone	Seating Pos	Restraint Type	Treated By
			Occupant of Owner's Vehicle		Driver	Seat Belt	
Injury Description		Medical Rpt	Treatment Location	Treated By			
Sore body, Headache, had a stroke a week later, Unable to speak, may be related to incident		Unknown	Frederick Memorial Hospital	Unknown			
Street Address		City	State	Zip Code			
		Frederick	MD				
Last Name	First Name	DOB	Location	Phone	Seating Pos	Restraint Type	Treated By
			Occupant of Owner's Vehicle		Front Passenger	Seat Belt	
Injury Description		Medical Rpt	Treatment Location	Treated By			
Sore body, and headaches		N/A	n/a	n/a			
Street Address		City	State	Zip Code			
		Frederick	MD				

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/28/2009 04:45:44 PM	MERCADTO	MERCADTO	SR Closed - Dissatisfied		Done	9/28/2009 04:45:44 PM	Service Request has been Closed Dissatisfied.
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/28/2009 04:42:27 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	9/28/2009 04:45:14 PM	
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
575012 Jemela Price							
Cust sts: Back In June my vehicle was in a collision and there was front end damage and none of the air bags deployed and I would like to know why.							
Crs Adv: Your case was transferred to ESIS. You will need to contact them as I don't have any updated information to provide you with.							
Tonic Mercado/PARI/ATX							
Confidential Comments							

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
9/28/2009 04:42:19 PM	MERCADTO	MERCADTO	SR Opened		Done	9/28/2009 04:42:19 PM	SR in Status of Closed has been Re-Opened by MERCADTO

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
7/27/2009 03:15:23 PM	MARQUEM	MERCADTO	SR Closed - Dissatisfied		Done	7/27/2009 03:15:23 PM	Service Request has been Closed Dissatisfied.

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
7/27/2009 03:12:24 PM	MARQUEM	MARQUEMO	Inbound Call Customer	Complex Request	Done	7/27/2009 03:14:12 PM	cust called in

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Cust sls wanting to know what is going on with the claim

CRS adv. Provided ESIS info
claim agent - Jemela Price
1-800-888-0164
offered to transfer and cust accepted

Monica Marquez/BRCPAR/ATX
x21072

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
7/27/2009 03:12:19 PM	MARQUEM	MERCADTO	SR Opened		Done	7/27/2009 03:12:19 PM	SR In Status of Closed has been Re-Opened by MARQUEMO

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/24/2009 03:33:33 PM	MERCADTO	MERCADTO	SR Closed - Dissatisfied		Done	6/24/2009 03:33:33 PM	Service Request has been Closed Dissatisfied.

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/24/2009 03:33:06 PM	MERCADTO	MERCADTO	BRC PAR	Close	Done	6/24/2009 03:33:26 PM	Closing file

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Case was sent to ESIS

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/23/2009 04:42:04 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	6/24/2009 03:33:05 PM	ESIS

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/17/2009 04:56:41 PM	AMSTUTST	TOPOROW	Escalation	ESIS - Injuries	Done	6/24/2009 11:31:33 AM	assigned to ESIS

Contact Last Name	Contact First Name	Account	BAC Code

Comments

675012 Jemela Price

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/17/2009 12:27:16 PM	KINZERTH	AMSTUTST	Notify CRM		Done	6/17/2009 04:56:39 PM	ESIS - Injuries

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/17/2009 09:53:34 AM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	6/23/2009 04:42:03 PM	ESIS

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/17/2009 09:52:59 AM	MERCADTO	KINZERTH	BRC PAR	ESIS - Injuries	Done	6/17/2009 12:27:14 PM	Escalating to ESIS

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Customer alleging non deployment and sustained injuries and was treated for injuries.

Tonia Mercada/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/16/2009 02:56:48 PM	RODRIGOS	MERCADTO	Notify CRM		Done	6/17/2009 09:52:58 AM	see previous activity
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
add the injury information for both people in the veh. info found on previous activity. send to esls							
Frederick Memorial Hospital							
Confidential Comments							

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/16/2009 02:49:16 PM	RODRUOS	RODRUOS	Inbound Call Third Party	Service Request Update	Done	6/16/2009 02:56:47 PM	Wife called in

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Cust sts that her husband was in an accident. Does not remember the date of the accident. sts that her husband was driving through a green light at about 40-45mph. Another veh ran a red light and hit husbands veh on the front. Airbags did not deploy. Husband and son (front passenger) had minor injuries. Husband had a stroke a week later. Does not know if it was related to the accident.

Cust seeks to know why the airbags did not deploy?

Before wearing seatbelt

Sore body, Headache, had a stroke a week later, Unable to speak.

Front Passenger

Son wearing seatbelt

DOB

Sore body, and headaches

Crs advised that the case will be sent to esis. advised that she will be contacted in about 7-10 business days.

Cust sts that she cant wait that long. She is going to get the veh back after repairs and does not want to get into another accident and the airbags dont deploy.

Crs advised that the 7-10 business days is for ESIS to call. advised that on how the airbags work.

Cust was not happy and stated she will never buy another GM vehicle and ended call.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/12/2009 06:01:25 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	6/17/2009 09:53:50 AM	10 Day

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Close file

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 05:52:24 PM	BURCHAM	MERCADTO	Notify CRM		Done	6/8/2009 10:57:53 AM	Letter Approved

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 05:52:11 PM	BURCHAM	KINZERTH	Final Approval	Letter (Non Goodwill)	Done	6/8/2009 05:52:23 PM	Letter Approved

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 12:24:37 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	6/12/2009 06:01:20 PM	10-Day Letter

Contact Last Name	Contact First Name	Account	BAC Code

Comments

sched to close June 17 if no customer contact

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 12:23:59 PM	MERCADTO	KINZERTH	Submit for Approval	Letter (Non Goodwill)	Done	6/8/2009 05:52:09 PM	10-day

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Attempted to reach customer:

6/5 1222pm est & 446pm est

6/8 1218pm est

Tonle Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 12:22:47 PM	MERCADTO	MERCADTO	Correspondence		Done	6/8/2009 12:22:47 PM	Created:BRCPAR_PA0005, SR#71-728644721

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/8/2009 12:18:55 PM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/8/2009 12:20:55 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Crs left message w/ TP

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 04:48:23 PM	MERCADTO	MERCADTO	Scheduled Outbound Call	Final Attempt	Done	6/8/2009 12:21:01 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Action Plan: Final Attempt to complete initial

6/8
12-2pm est

Tonle Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 04:46:31 PM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/5/2009 04:48:19 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Crs left message w/ contact info and SR

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 12:24:43 PM	MERCADTO	MERCADTO	Scheduled Outbound Call	Cust	Done	6/5/2009 04:47:10 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Action Plan: 2nd attempt to complete initial contact

6/5
430-630pm est

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 12:22:53 PM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/5/2009 12:24:18 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Crs left message w/ TP

Tonle Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 12:12:26 PM	MERCADTO	MERCADTO	Outbound Call Customer	Made Contact	Done	6/5/2009 12:22:26 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

TP answered the phone. Cn asked for customer and TP sta that I was calling a switch board and would need to know where cust works in order to be able to locate him, there is no documentation in the file that indicates any info of that nature.

Tonle Mercado/PAVATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 11:26:33 AM	MERCADTO	MERCADTO	Ownership Changed	Ownership Escalated to BRC	Done	6/5/2009 11:26:33 AM	Ownership Escalated to BRC

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:08:03 AM	GARCIAJR	MERCADTO	Ownership Changed		Done	6/5/2009 10:08:03 AM	Service Request Ownership has changed FROM: MALLAMO TO: MERCADTO

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:45 AM	GARCIAJR	MERCADTO	BRC PAR	Initial Contact- 10 Day Letter	Done	6/8/2009 12:22:33 PM	10-Day Letter

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Attempted to reach customer.

6/5 1222pm est & 446pm est
6/8 1216pm est

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:40 AM	GARCIAJR	MERCADTO	BRC PAR	Initial Contact- Dealer	Done	6/5/2009 12:10:53 PM	called Buchanan Chevrolet @ 717-762-3141

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Crs Spoke w/ Chris Hudson Svc Mgr Voice Mail

Crs Adv: Was calling in regards to customer and incident. Would like to know if customer has ever been in there w/ any air bag related concerns in the past? Would also like to know if it becomes necessary would you mind hosting a TP inspection. Please give me a call when you get a chance. Provided corascl info and SR

Tonle Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created By	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:30 AM	GARCIAJR	MERCADTO	BRC PAR	Initial Contact- AVM	Done	6/17/2009 04:54:51 PM	called

Contact Last Name	Contact First Name	Account	BAC Code

Comments: ***Documented AVM initial will document Cust ack n this activity***

Crs Adv: This is Tonie Mercado calling from the GM Product Allegation Dept. I have received your file and do require further information. Do you have a moment to speak to me?

Cust sts: Yes

Continued In Initial

Tonie Mercado/PAR/ATX

Confidential Comments: [REDACTED]

Created By	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:25 AM	GARCIAJR	MERCADTO	BRC PAR	Acknowledgement	Done	6/5/2009 12:02:52 PM	called Christiansen, I Carl 914055 8004

Contact Last Name	Contact First Name	Account	BAC Code

Comments: [REDACTED]

DVM Name: Carl Christiansen

Node/Mailbox: 814055-8004

This is Tonie Mercado

calling from the GM Product Allegation Dept to make you aware of a file that was received in your area.

The request number is: 71-728644721

The Customer's name is:

The dealer involved is: Buchanan Chevrolet

Located in: Waynesboro PA

The vehicle is a: 2008 Chevrolet Cobalt

With current mileage: 55K

The last 8 digits of the VIN# are: 67

This involves: customer is concerned because the air bags didn't deploy in a collision. We will be doing an investigation on the case

This message is for informational purposes only. However if you do have any questions please feel free to give me a call.

Provided contact info.

Tonie Mercado/PAR/ATX

Confidential Comments: [REDACTED]

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:20 AM	GARCIAJR	MERCADTO	Notify CRM		Done	6/5/2009 12:26:34 PM	File assigned

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:07:16 AM	GARCIAJR	MERCADTO	Research		Done	6/5/2009 11:30:10 AM	Research via

Contact Last Name	Contact First Name	Account	BAC Code

Comments

No open recalls
No prev related claim history
No other files

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:06:57 AM	GARCIAJR	MERCADTO	BRC PAR	Case Assigned	Done	6/5/2009 11:22:50 AM	File assigned to Tonle Mercado ext 41183

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Received

Tonle Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:06:52 AM	GARCIAJR	MALLAMO	SR Opened		Done	6/5/2009 10:06:52 AM	SR In Status of Closed has been Re-Opened by GARCIAJR

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/5/2009 10:06:50 AM	GARCIAJR	MALLAMO	SR Closed - Dissatisfied		Done	6/5/2009 10:06:50 AM	Service Request has been Closed Dissatisfied.

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/29/2009 04:22:56 PM	MALLAMO	GARCIAJR	Escalation	Initiate PAR	Done	6/5/2009 10:06:46 AM	Assigning activity to PAR QUEUE

Contact Last Name	Contact First Name	Account	BAC Code

Comments

CRS advised that a person from the PAR Department will contact the customer within 5* business days.

Received and assigned in PAR.

Joe G/ATX/Workflow Par

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/29/2009 04:15:44 PM	MALLAMO	MALLAMO	Inbound Call Customer	Complex Request	Done	5/30/2009 12:19:06 PM	Pre PAR

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Cust st:

- have a 2006 Cobalt
- Last thursday i had an accident with a lady i was on 40 miles/hour the, and what happened was we bumped to each others car
- i had a tot of things that was broken on my veh
- Now the veh was in a autoshop and the insurance company take it to have it repaired
- When that incident happened the airbag didnt deploy and i was with my son then
- i was just wodering if that is normal coz as far as i know the airbag should deploy immediately and that is the reason why my son's neck get cut off.

Cust sks:

- i jus would like to get information on why did th airbag didnt deploy

Crs adv:

- Will be forwardign the issue to a Product allegation department for them to check on that and have a thorough investigation on this

Sadie Jones/CAC/Ttar1/Mla/Lv10

Confidential Comments

Service Request Detail

UCC Information

UCC Code	Symptom	Description
C46	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front
C48	SIR - Did Not Deploy	Restraints - (SIR) - Passenger Front